

		Defendant Albert Nguyen’s proposed Cross-Complaint asserts one cause of action for approval of claim and disbursement of the entirety of the interpleaded funds to Cross-Complainant Albert Nguyen. (A. Nguyen Decl. ¶ 33, Exh. 13 [Proposed Cross-Complaint].) The proposed Cross-Complaint’s claims arise out of the transaction, occurrence, or series of transactions or occurrences as those alleged in the Complaint (ROA 2) and are permissive. (<i>Banerian v. O’Malley</i> (1974) 42 Cal.App.3d 604, 612 [“Except as between plaintiffs and defendants, there is no compulsory cross-complaint in California procedure.”].) Defendant Albert Nguyen has not unreasonably delayed in seeking leave to file its proposed cross-complaint and no prejudice to any party has been identified. Defendant Albert Nguyen shall give notice and file and serve the Cross-Complaint attached as Exhibit 13 to the Declaration of Albert Nguyen by July 24, 2026.
53	Abas vs. Rivian Automotive, LLC 26-01551242	Motion to Compel Arbitration Defendant Rivian Automotive LLC’s unopposed motion to compel arbitration and to stay the action is GRANTED. The Court takes judicial notice of the Complaint filed by Plaintiff Peter Abas in this action, as requested by Defendant. (Evid. Code, § 452, subd. (d).) Defendant contends Plaintiff’s claims are subject to arbitration pursuant to a “Rivian Purchase Agreement.” Plaintiff has not filed an opposition. Legal standard The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 (<i>Rosenthal</i>)). “[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence” and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to any defenses raised. (<i>Ibid.</i>) Defendant seeks to compel arbitration under the FAA. The Rivian Purchase Agreement provides that the arbitration agreement is entered into pursuant to the FAA. (Ameripour Decl., Ex. 1, p. 7.)

Analysis

On August 23, 2023, Plaintiff purchased a new 2023 Rivian Model R1S (the Subject Vehicle) from Defendant and executed the Rivian Purchase Agreement. (Ameripour Decl., ¶ 2, Ex. 1.)

The Rivian Purchase Agreement states on page 1, in part, “**THIS AGREEMENT REQUIRES THE USE OF ARBITRATION ON AN INDIVIDUAL BASIS TO RESOLVE DISPUTES, RATHER THAN JURY TRIALS OR CLASS ACTIONS. PLEASE REFER TO SECTION 16 FOR ADDITIONAL DETAILS.**” (Ameripour Decl., Ex. 1 at p. 1 [emphasis in original].)

The Rivian Purchase Agreement further provides in Section 16:

16. DISPUTE RESOLUTION—ARBITRATION, CLASS ACTION WAIVER

Binding Arbitration. To the fullest extent permitted by applicable law and except for small claims or if You choose to opt-out as provided below, You and Rivian agree to resolve any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or Our relationship, including advertising and other communications between You and Rivian, Rivian products or services, and as applicable, Your credit application, or the purchase or condition of the Vehicle (a “Dispute”) by binding arbitration conducted by the American Arbitration Association (“AAA”) in accordance with the AAA Consumer Arbitration Rules, unless You and We agree otherwise. For more information on arbitration and to access the AAA Consumer Arbitration Rules, please visit: www.adr.org. If the AAA Consumer Arbitration Rules conflict with this Agreement, then this Agreement shall control. **You and We understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to present our claims to a jury and to have claims resolved by a jury trial, and also that judicial appeal rights, if any, are more limited in arbitration than they would be in court.**

(Ameripour Decl., Ex. 1 at p. 6 [emphasis in original].)

When a party petitions the court to compel arbitration, it “must allege the existence of an agreement to arbitrate the controversy (§ 1281.2)” and the provisions of the arbitration agreement must be set forth verbatim or a copy of the agreement must be attached to the petition and incorporated by reference. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218 [citations omitted].)

“If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, [disagreed with by *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, on a different point.])

		Defendant attached as Exhibit 1 to the Ameripour Declaration a copy of the Rivian Purchase Agreement that bears Plaintiff’s signature. (Ameripour Decl., Ex. 1.) Ameripour also declares that Defendant requested on April 10, 2026, that Plaintiff stipulate to arbitration and that Plaintiff did not agree to do so. (Ameripour Decl., ¶ 4.) The Rivian Purchase Agreement identifies Rivian, LLC as the seller, while the moving Defendant is Rivian Automotive, LLC. Plaintiff, however, sued Rivian Automotive, LLC on warranty claims arising from the same vehicle purchase and attached the same Purchase Agreement to his Complaint. (RJN, Ex. 2.) Plaintiff has not disputed Defendant’s right to enforce the agreement or otherwise opposed the motion. Defendant has established the existence of a written arbitration agreement and its right to enforce that agreement against Plaintiff. Plaintiff asserts causes of action for breach of express warranty, breach of the implied warranties of merchantability and fitness, failure to promptly repurchase the Subject Vehicle, and failure to timely commence and complete repairs. Each claim arises from or relates to the purchase, warranties, condition, or repair of the Subject Vehicle. The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (<i>Howard v. Goldbloom</i> (2018) 30 Cal.App.5th 659, 663.) The Court finds the Rivian Purchase Agreement’s arbitration provision encompasses all of Plaintiff’s claims in this action. Once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (<i>Rosenthal</i>, 14 Cal.4th at p. 413.) Plaintiff has not opposed the motion and therefore has not raised any defense to enforcement of the arbitration agreement. Accordingly, the Court GRANTS Defendant Rivian Automotive LLC’s motion to compel arbitration. The Court STAYS the action pending the completion of arbitration. An ADR Review Hearing is set for July 7, 2027 at 8:30 a.m. in Department C16. Defendant shall give notice of the ruling.
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54	Snell vs. Costco Wholesale Corporation 23-01354070	Motion to Compel Plaintiff Mark Snell’s motion to compel Defendant Costco Wholesale Corporation (“Costco”) to pay all fees and costs of the discovery referee appoint in the instant action is CONTINUED to August 21, 2026 at 10:00 a.m. in Department C16. The declaration Plaintiff submitted is insufficient to show inability to pay the referee’s fees. Without detailed information as to Plaintiff’s income, assets, and liabilities the Court cannot adjudicate the issue. The Court also needs information on the expected referee fees. Should Plaintiff desire, Plaintiff may file a supplemental declaration with additional financial information or financial statements no later than 16 court days prior to the continued hearing date. Costco may file a response to the supplemental declaration, if any, no later than 9 court days prior to the continued hearing date. Plaintiff to give notice.
55	La Paz Village Investors, LLC vs. Orange County Realtors, Inc. 26-01538551	Motion to Strike - Anti SLAPP Plaintiff and Cross-Defendant La Paz Village Investors, LLC (“LPVI”) moves to strike certain portions of the First Amended Cross-Complaint (“FAXC”) filed by Defendant and Cross-Complainant Orange County Realtors, Inc. (“OCR”). For the following reasons, the motion is GRANTED in part and DENIED in part. A. Procedural Issues: OCR’s opposition is 37 pages and exceeds the applicable page limit. (Cal Rules of Court, rule 3.1113(d) – No opening or responding memorandum may exceed 15 pages.) The Court exercises its discretion to consider the opposition. B. Evidentiary Objections: Many of the objections are directed to entire paragraphs or exhibits rather than specific objectionable statements. “It is settled law that where evidence is in part admissible, and in part inadmissible, the objectionable portion cannot be reached by a general objection to the entire [evidence], but the inadmissible portion must be specified.” (<i>People v. Harris</i> (1978) 85 Cal.App.3d 954, 957; see also <i>Walls v. Macy’s</i> (1964) 226 Cal.App.2d 29, 30.) To the extent any challenged paragraph contains both admissible and allegedly inadmissible matter, LPVI’s generalized objections fail for lack of specificity. Evidentiary Objections to the Declaration of Anthony Bucciero (ROA 259) Pars. 2-3 are OVERRULED.